

**JUSTIFICATION REVIEW DOCUMENT
FAR 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL**

Program/Equipment: The Army Management Staff College (AMSC) Advanced, Intermediate, and Basic Civilian Education Systems (CES) courses requests a firm-fixed-price Indefinite-Delivery Indefinite-Quantity (IDIQ) contract with The Myers-Briggs Company for the Myers-Briggs Type Indicator (MBTI), and Thomas-Kilmann Conflict Mode Instrument (TKI).

Authority: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 implemented by FAR 13.5.

Amount: \$1,962,554

Prepared by: [REDACTED] [REDACTED]
Date: 02/04/2025

Contracting Officer: [REDACTED] [REDACTED]
Date: 02/19/2025

Technical: [REDACTED] [REDACTED]
Date: 02/20/2025

Requirements: [REDACTED] [REDACTED]
Date: 02/20/2025

Reviews: I have reviewed this justification and find it adequate to support sole source.

Program Manager: [REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
Date: See digital signature

Small Business Professional: [REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
Date: See digital signature

[Redacted]

Control No. MICC 2025-14

Legal Counsel:

[Redacted]

[Redacted]

Date: See digital signature

Director, MICC-Fort Leavenworth:

[Redacted]

[Redacted]

Date: See digital signature

Assistant Director, Small Business Program:

[Redacted]

[Redacted]

Date: See digital signature

[Redacted]

**FAR 13.5 Simplified Procedures for Certain Commercial Items
Sole Source Justification and Approval**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Leavenworth 535 Kearny Ave, Bldg 338 Blockberger Terrace, Rm 207, Fort Leavenworth, KS 66027-1391.

2. Description of Action: The Army Management Staff College (AMSC) requests a five-year, firm-fixed-price Indefinite-Delivery-Indefinite-Quantity (IDIQ) contract with The Myers-Briggs Company. The Myers-Briggs Company is identified as a small business under NAICS 513130 Book Publishers. The Government projects award for March 2025 and fiscal year 2025 Operations and Maintenance, Army funds will be utilized on individual task orders for the fiscal year in which they are processed. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: The Myers-Briggs Type Indicator (MBTI) assessment is a tool that helps people increase their self-awareness, understand and appreciate differences in others, and apply personality insights to improve their personal and professional effectiveness. MBTI was originally developed in 1943 by Katharine Cook Briggs and her daughter Isabel Briggs Myers. Myers and Briggs were prominent pioneers of personality assessment. In 1975, The Myers-Briggs Company became the exclusive publisher of the MBTI assessment. The Myers-Briggs Company continues to revise, develop, and update their Type Indicator to enhance their validity, reliability, and global use. The MBTI assessment identifies people as one of 16 MBTI personality types. Each type reflects how a person naturally prefers to direct and receive energy, take in information, make decisions, and approach the outside world.

The Thomas-Kilmann Conflict Mode Instrument (TKI) helps individuals and teams engage in productive discussions about conflict. It provides an understanding of different conflict management styles and their impact on interpersonal and group dynamics, and how to choose the best approach for any situations to create more positive outcomes. The TKI assessment works by identifying an individual's typical response to conflict situations using one or more of five conflict-handling modes or styles. The styles/modes include competing, accommodating, avoiding, collaborating, and compromising. These modes reflect varying levels of assertiveness and cooperation. By learning the conflict-handling modes and identifying which ones they tend to use (and over/underuse), people can choose the best mode for any given situation.

MBTI and TKI provide a powerful framework for understanding and relating to people, which civilians can use continuously throughout their professional and personal lives.

This action is a follow-on to contract W91QF4-24-P-0008. That contract was not competed under authority Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901. In addition, the paragraph, "Actions to Increase Competition" of the

previous justification, stated: Competition is not feasible, MBTI & TKI instruments are copyrighted and The Myers-Briggs Company is the sole source provider. No additional action to increase competition is feasible because all the contractor's materials (MBTI & TKI instruments) are produced by TMBC and are protected under the "1976 Copyright Act."

Table 1
Estimate of Annual Order Quantities

Item Description	Annual Estimated Minimum Quantity	Estimated Unit Price	Estimated Price
MBTI Tokens			
TKI Tokens			
Elevate Platform Access			
MBTI Certification Training			

Total Estimate for Base Year:

Table 2
Estimated Price per Period of Performance

Contract Period	Period of Performance	Estimated Price
Base Period:	17 MAR 2025 to 16 MAR 2026	
Option Period 1:	17 MAR 2026 to 16 MAR 2027	
Option Period 2:	17 MAR 2027 to 16 MAR 2028	
Option Period 3:	17 MAR 2028 to 16 MAR 2029	
Option Period 4:	17 MAR 2029 to 16 MAR 2030	
FAR Clause 52.217-8 option:	17 MAR 2030 to 16 SEP 2030	

* 2% price increase applied each year

Total: \$1,962,554

4. Authority Cited: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 as implemented by FAR Subpart 13.5: Sole Source

5. Reason for Authority Cited: MBTI/TKI is commercially available to the public. IAW FAR 13.500, this acquisition is greater than the simplified acquisition threshold but under the \$7.5 million threshold for commercial products and services. The MBTI/TKI assessment tool is copyrighted to and distributed by a sole source provider, The Myers-Briggs Company; there are no authorized resellers. MBTI/TKI assessments are integrated into AMSC and administered as part of the CES Advanced, Intermediate, and Basic courses. MBTI assessments have been incorporated into the programs of instruction (POI) since at least 2013. The results are used throughout the entire duration of the courses and after graduation. The effective communication, problem solving, team building, leadership, development of others, and conflict mitigation skills carry beyond the classroom to support every student's professional and personal development.

a. **Facts and Circumstances Establishing the Need for Sole Source Procurement:** The MBTI/TKI tools are designed to help people understand and apply personality insights to improve personal and professional effectiveness. The assessment's impact on interpersonal and group dynamics contribute to creating more positive outcomes. These tools teach students how to understand and overcome conflict, which is important because the Army is in an era of persistent conflict. The MBTI and TKI assessments are a copyrighted product produced and distributed by a sole source proprietor, The Myers-Briggs Company. These assessments are integrated into the POI for CES Advanced, Intermediate, and Basic courses. The results from the assessments are used throughout the entire duration of the course. The course expands upon the results by promoting team building, leadership, and the development of others. Not permitting the use of these instruments would negate the U.S. Army Training and Doctrine Command (TRADOC)'s Accreditation of Training Operations Management Activity (TOMA)-validated POIs and would cause mission failure. Mission failure would occur because the army would not properly train and prepare their personnel to excel in an era of persistent conflict. TRADOC Regulation (TR) 350-70 Army Learning Policy dated 10 July 2017 consolidates policy for Army-wide production, implementation, and evaluation of Army learning products across the operational, institutional, and self-development (OISD) domains. Chapter 3 Section 5 of TR 350-70 specifically addresses the Army Learning Model with respect to its application to the self-development domain. TR 350-70 clearly defines the importance of self-development throughout the Army Learning Model, which MBTI/TKI successfully directly contributes to. TR 350-70 1-2(b) Scope mentions the intent of the regulation is to operationalize the Army Learning Model (ALM). ALM seeks to meet the Army's need to develop adaptive, critical thinking Army Civilians capable of meeting the challenges of operational adaptability in an era of persistent conflict. Conflict is very important to the Army's mission. TKI directly supports the Army's initiative by helping individuals and teams engage in productive discussions about conflict. IAW TR 350-70 the more Army Civilians focus on conflict and ways to mitigate it, the more successful the whole army will be in the future.

b. **Alternatives:** The Myers-Briggs Type Indicator instrument is a psychological instrument that provides information about Jungian based personality or psychological types. It is not a test or evaluative instrument and there are no right or wrong answers. The responses to the questions give civilian students an indication of the person's psychological type. When someone understands another person's psychological type with the knowledge provided by MBTI/TKI they can mitigate conflict by understanding another person's motivations. The similarity with other instruments is that it can be a paper and pencil or online instrument. Unlike other psychological instruments, it is not an assessment of mental health, intelligence, or unhealthy personality types or patterns. Other common psychological instruments may tell an individual their deficiencies. It is not possible to have MBTI results that are bad or unhealthy. MBTI is intended for self-discovery and not to find flaws. Unlike other instruments, it does not measure amounts of personality traits or qualities of thought or behavior. Instead, MBTI sorts personalities into different types that are qualitatively different. The Thomas-Kilmann Conflict Mode

Instrument provides an understanding of different conflict management styles and their impact on interpersonal and group dynamics, and how to choose the best approach for any situations to create more positive outcomes. TKI's biggest discriminator against alternatives is the focus on interpersonal conflict. We have analyzed other tools such as the Big Five Personality, Extroversion vs Introversion, and Visual DNA but none of them meet the depth and breadth of the MBTI or TKI instrument and the breakdown of each category when it comes to gaining conflict resolution skills. The Big Five Personality specifically identifies deficiencies in each of their five categories, furthermore they use quantifiable results to show where each test taker is flawed when compared to the average results. The Big Five Personality does not meet the scope of either MBTI or TKI. The introversion and extroversion personality test only provides results for a small portion of the different personalities people possess. The school would be unable to use the results in a manner to support TRADOC's scope, specifically operational adaptability in an era of persistent conflict, outlined in TRADOC Regulation 350-70. MBTI and TKI directly support TR 350-70's scope. The Visual DNA personality test has the quiz takers select different pictures based on the questions asked. Some sections include selecting which brands the quiz takers typically gravitate towards. The Visual DNA personality test does not provide results to create the opportunity for students to focus on self-development. The results are one-sided and only teach the students about personal dynamics instead of interpersonal and group dynamics. TKI results specifically prioritize the students' interpersonal dynamics. Use of alternatives will lead to suspension of operations at AMSC and increase the cost to the government because instructors will need new certifications and time to incorporate the new instruments into the POIs.

c. Additional Supporting Information: The required materials illustrated in Table 1 are the minimum requirements of the government to support AMSC students each fiscal year. The current inventory levels will last until the middle of March when the next school semester begins. The materials in Table 1 are copyrighted to The Myers-Briggs Company and are not available through other sources. The Myers-Briggs Company has provided a sole source memorandum validating MBTI and TKI instruments as solely their materials.

d. Impact if justification not approved: MBTI & TKI assessments are an integral part of the curriculum; removing these assessment instruments would require a full POI revision, as well as training and recertification of faculty to gain mastery of the revised curriculum. The time to develop and implement new POIs will lead to multiple cancellation of courses, which directly impacts mission success. A national accrediting body would have to approve a new self-assessment which causes a disruption in class instruction. Without continuity, Army students taking AMSC's CES advanced, intermediate, and basic courses will not get the exposure to MBTI and TKI that would augment their personnel skills to help mitigate conflict or navigate difficult interpersonal situations – directly impacting mission success. Not permitting the use of these instruments would negate the government's previous investment of over [REDACTED] to certify facilitators to assess and administer MBTI and TKI assessment tools. The government would need to allocate the new cost for the POI design, as well as for the

instructors' re-training certification. The estimated cost to the government to revise the existing POI and instructor certifications is [REDACTED]

6. Efforts to Obtain Competition: The required materials and certifications are not available through mandatory sources. A search of GSA's eLibrary revealed no sources of the required materials. A previous solicitation along with a J&A were posted to SAM.gov and produced no responses. A web search of commercial sources for the required publications and certification resulted in one provider, The Myers-Briggs Company. The Contracting Officer published the notices required by FAR 5.201.

7. Actions to Increase Competition: Intent to sole source with alternative consideration was posted to SAM.gov on 1 October 2024 for 30 days under Notice ID FY25MBTICRA002. To date, no other sources have responded to express interest in the acquisition. Actions to increase competition have continuously happened every year since 2013. No other sources have responded informing the contracting office that instruments of the same nature and similar results are an equivalent alternative to MBTI & TKI offered by The Myers-Briggs Company. A sources sought notice was posted to SAM.gov from 18 December 2024 to 6 January 2025 under Notice ID W91QF4-25-Q-A003. No sources responded.

8. Market Research: The Myers-Briggs Type Indicator (MBTI) and Thomas-Kilmann Conflict Mode Instrument (TKI) are copyrighted materials only available through The Myers-Briggs Company. Market research was conducted from 1 October to 6 November 2024. Market research includes reviewing the awarded contracts and web searches to find alternatives assessments that provide personality insights. See section 5(b) for an assessment of the capabilities of alternative vendors and why they are unable to meet AMSC's requirement.

9. Interested Sources: To date, no sources have written to express interest in this acquisition throughout 10 plus years of publications to SAM.gov.

10. Other Facts:

a. Procurement History.

Contract: W91QF4-14-A-0003

Period of Performance 7 November 2014 – 6 November 2018

Vendor: CPP, Inc. (Changed to The Myers-Briggs Company in 2018)

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Additional Information: 5 orders with a total cumulative value of [REDACTED] were issued against W91QF4-14-A-0003

Contract: W91QF4-20-A-0028

Period of Performance 5 June 2020 – 4 June 2022

[REDACTED]

Vendor: The Myers-Briggs Company

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Additional Information: 6 orders with a total cumulative value of [REDACTED] were issued against W91QF4-20-A-0028

Contract: W91QF4-20-P-0012

Award Date: 03 April 2020

Vendor: The Myers-Briggs Company

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Contract: W91QF4-20-P-0019

Award Date: 09 April 2020

Vendor: The Myers-Briggs Company

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Contract: W91QF4-23-P-0007

Award Date: 03 March 2023

Vendor: The Myers-Briggs Company

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Contract: W91QF4-24-P-0008

Award Date: 02 April 2024

Vendor: The Myers-Briggs Company

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

b. After reviewing all recent procurements of MBTI & TKI, all J&As identified The Myers-Briggs Company as the sole source provider. No alternatives exist at this time. As previously mentioned, The Myers-Briggs Company has provided a sole source memorandum validating MBTI and TKI instruments as solely their materials. The procurement history confirms AMSC's need for an IDIQ because of frequent small orders to fulfil mission requirements. There have been multiple modifications to increase the BPA price limit and small orders in short succession. All J&As cited the authority under 13.5 for simplified procedures for certain commercial items.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted]
[Redacted]
Chief, Operations

Date: See digital signature

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted]
[Redacted]
Director, [Redacted]

Date: See digital signature

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. The developed pricelist, to be included in the IDIQ has been determined fair and reasonable based on the quote provided, previous acquisitions, and the IGCE. Based on previous acquisitions the unit price has increased on average by 5.5% year over year for both instruments. In FY 24, the unit price increased 7%. This was due to decreasing the order quantity of MBTI from [Redacted] and TKI [Redacted]. The Myers-Briggs Company provides greater discounts when the order quantity increases. The price fluctuation is consistent with the Bureau of Labor Statistics graph over the past four years. Due to the large order quantity of this requirement, the government is getting the pricing at or below the standard pricing available to the commercial market. As a part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial.

[Redacted]
[Redacted]
Contracting Officer

Date: 2025.02.21

11:19:11 -06'00'

Date: See digital signature

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted]
[Redacted]
Contracting Officer

Date: 2025.02.21

11:19:25 -06'00'

Date: See digital signature

Approval

Based on the foregoing justification, I hereby approve the procurement of MBTI and TKI assessment tools on a sole source basis pursuant to the authority of the Simplified Procedures for Certain Commercial Items, Title 41 United States Code Section 1901 as implemented by Federal Acquisition Regulation 13.5. The estimated value of the contract is \$2.0 million for a 5-year ordering period, from approximately March 2025 through approximately March 2030. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

KUKES.SCOTT.DEA N.1151934346

Digitally signed by
KUKES.SCOTT.DEAN.1151934346
Date: 2025.03.06 15:10:53 -06'00'

SCOTT D. KUKES

Alternate Advocate for Competition

U.S. Army Mission and Installation Contracting Command, JBSA Fort Sam Houston, TX